

9:00 AM

Line 5

25-CIV-07522 KELLY TRAN VS. BAY AREA AG INC. A CALIFORNIA CORPORATION,
ET AL

KELLY TRAN
BAY AREA AG INC. A CALIFORNIA CORPORATION

RAMSEY HANAFI
SHAUN J. VOIGT

Defendant's Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Defendant Bay Area AG, Inc.'s Motion to Compel Arbitration and Stay or Dismiss Proceedings is DENIED.

Defendant Bay Area AG, Inc. ("BAAG") seeks to compel the claims asserted against it by Plaintiff Kelly Tran to arbitration, based upon an arbitration agreement she signed twice during her employment with BAAG. Tran does not dispute that she signed an otherwise enforceable arbitration agreement covering the claims asserted in the Complaint, instead contending that the agreement is invalid under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA").

A. EFAA Applies to Entire Cases

The EFAA renders a predispute arbitration agreement, at the plaintiff's election, invalid and unenforceable "with respect to a case which is filed under Federal, Tribal, or State law and relates to the ... the sexual harassment dispute." (9 U.S.C. § 402(a).) Indeed, 9 U.S.C. § 402(a) states, in part:

Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, ... no predispute arbitration agreement ... shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.

(9 U.S.C. § 402(a) [emphasis added].) The statute defines "sexual assault dispute" as "a dispute involving a nonconsensual sexual act or sexual contact, as such terms are defined in [18 U.S.C. § 2246] or similar applicable Tribal or State law[.]" 9 U.S.C. § 401(3).

Controlling California authority also holds, "when a plaintiff's lawsuit contains at least one claim that fits within the scope of the act, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit." (*Liu v. Miniso Depot CA, Inc.* (2024) 105 Cal.App.5th 791, 800.) "By its

plain language, ... the [EFAA] applies to the entire case, not merely to the sexual assault or sexual harassment claims alleged as a part of the case.” (*Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 577; accord. *Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75, 89–90; *Casey v. Superior Court* (2025) 108 Cal.App.5th 575, 588.)

BAAG’s argument to the contrary—that only particular claims should be kept in court if the EFAA applies—is thus entirely without merit. As long as the present case relates to a dispute relating to conduct that is alleged to constitute sexual harassment under California law, then the entire case is exempt from arbitration.

B. Conduct is Adequately Alleged.

BAAG also contends that Tran has not adequately alleged conduct constituting sexual harassment and that she conflates discrimination and harassment.

The Court of Appeal has expressly left open the question of what need be pleaded for the EFAA to apply. (See *Liu v. Miniso Depot CA, Inc.*, *supra*, 105 Cal.App.5th at p. 799, fn. 2.) Subsequent published cases do not address the question and merely hold that pleading a valid a cause of action under state law as determined by federal pleading standards is sufficient to bring the entire action within the scope of the EFAA, but none have held that such pleading is necessary. (See *Decloedt v. Radnet Management, Inc.* (Jun. 26, 2026, B343963) __ Cal.App.5th __ 2026 WL 1959641, **6–7; *Quilala v. Securitas Security Services USA, Inc.*, *supra*, 117 Cal.App.5th at pp. 86–87.) Many federal district courts have, however, required a plaintiff to “show[] that his case relates to conduct that would, if proven, actually amount to sexual harassment under Federal, Tribal, or State law.” (*Smith v. Meta Platforms, Inc.* (S.D.N.Y. Sept. 30, 2025, No. 24 CIV. 4633 (JPC)) 2025 WL 2782484 (“*Smith*”), *8.) *Smith*, having rejected the requirement that the plaintiff assert a sexual harassment claim, notes:

To be sure, this does not mean that a party invoking the EFAA need necessarily state a cause of action for sexual harassment, because to invoke the EFAA, a party’s case need only “relat[e] to” sexual harassment. [Citation.] But regardless of the party’s cause of action, there still must be factual allegations sufficiently showing sexual harassment for a party to invoke the EFAA on account of a “sexual harassment dispute.”

(*Ibid.*)

BAAG argues that the allegations of sexual harassment must be plausible. This argument is based on the mistaken premise that federal pleadings standards of plausibility apply and that evidentiary facts such as those need to defeat summary judgment are required at the pleading stage. It is at the very least questionable whether, in state court, the allegations must satisfy the plausibility standards of *Bell Atlantic Corp. v. Twombly* (2007) 550 U.S. 544 and *Ashcroft v. Iqbal* (2009) 556 U.S. 662. In assessing the sufficiency of pleadings, California state courts do not assess whether the allegations are plausible. (See *Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 618, fn. 12.) Likewise, only the ultimate facts are necessary, and evidentiary

allegations are not only superfluous but subject to being stricken. (See 4 Witkin, Cal. Proc. (6th ed. 2025) Pleading, § 406.) Furthermore, not all federal courts have required plausibility on this point, instead only requiring the allegations to be non-frivolous. (See, e.g., *Diaz-Roa v. Hermes Law, P.C.* (S.D.N.Y. 2024) 757 F.Supp.3d 498, 533.)

In support of its argument, BAAG cites to *Decloedt v. Radnet Management, Inc. supra*, ___ Cal.App.5th ___, 2026 WL 1959641, arguing that the case decided whether federal pleading standards apply. To the contrary, in that case, the Court of Appeal merely “[a]ssum[ed] arguendo the pleading standard in Rule 12(b)(6) applies,” because it held that the complaint satisfied the heightened standard regardless. (*Decloedt, supra*, at *6.) BAAG’s intimation that anything more was decided is erroneous—if not deceptive. In light of this representation and the argument discussed above regarding the EFAA’s application to entire cases, BAAG’s counsel is reminded that they owe a duty of candor to the Court. (See Rules Prof. Conduct, rule 3.3(a)(1).)

Certainly, there is no suggestion in the text of the EFAA that the question of whether a case relates to conduct relating to conduct that is alleged to constitute sexual harassment under state law turns on whether the plaintiff’s pleading sets forth allegations constituting a cause of action for sexual harassment under that satisfy federal pleading standards. Furthermore, as defined by the EFAA, a “sexual harassment dispute” is not one that relates merely to a *cause of action* for sexual harassment but “conduct alleged to constitute sexual harassment under applicable ... State law. (9 U.S.C. § 401(4); see *Olivieri v. Stifel, Nicolaus & Company, Incorporated* (2d Cir. 2024) 112 F.4th 74, 92 [allegations of retaliation for reporting sexual harassment is “sexual harassment dispute” under EFAA].)

Importantly, California state law renders *any* harassment based on sex or gender by an employer unlawful. (Gov. Code, § 12940, subd. (j)(1) [making unlawful for “any employer ... , because of ... sex ... to harass an employee ... ”].) When the harassment is so offensive, humiliating, distressing, or intrusive so as to create a hostile work environment, a cause of action may accrue, but the harassment itself is distinct from the resulting hostile work environment. (See *id.*, at § 12923, subd. (a).) That is, even if it does not give rise to a cause of action, the harassing conduct is still legally prohibited. And harassment does not merely include “[s]exual favors” and “unwanted sexual advances” but “epithets, derogatory comments or slurs on a basis” such as sex or gender. (Cal. Code Regs., tit. 2, § 11019, subd. (b)(2).)

Arguably the Complaint appears to conflate sexual harassment with sexual discrimination, such as when it complains that certain job privileges were given only to male employees. (See Sep. 25, 2025 Complaint, ¶¶ 13b–13c; see also *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 706–707 [harassment & discrimination are distinct].) Nevertheless, liberally interpreted as required (see Code Civ. Proc., § 452), the Complaint alleges that, throughout her employment, Tran “was publicly dismissed, criticized, and labeled ‘too strong,’ ‘too fierce,’ and ‘too aggressive’” while her “male colleagues never faced similar criticism or negative labeling” (Complaint, ¶ 13h). These criticisms were allegedly levied at Tran “based on her gender.” (*Id.*, at ¶ 13; see Gov. Code, § 12926, subd. (r)(2) [“‘Sex’ also includes, but is not limited to, a person’s gender”].))

Section 402(a) expressly applies to "**any case** ... which relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. § 402(a) [emphasis added].) The Legislature's use of the phrase "relates to" is inherently, and appears to be intentionally, broad. That phrase has been interpreted expansively in federal jurisprudence to mean having "a connection with," "bearing upon," or "referring to." (See *Morales v. TTWA* (1992) 504 U.S. 374, 383.)

While the alleged comments may arguably not be so severe and pervasive as to support a cause of action for sexual harassment, the comments are clearly conduct alleged to constitute sexual harassment under California law. Accordingly, this case is related to a dispute that is related to conduct alleged to constitute sexual harassment under state law, and the EFAA applies.

Because the Court finds that the EFAA applies, Defendant's Motion to Compel Arbitration is DENIED. "[T]he plain language of the EFAA exempts a plaintiff's entire case from arbitration." *Liu v. Miniso Depot, CA., Inc., supra*, 105 Cal.App.5th at 796 (emphasis added).

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM
Line 6 & 7

25-CLJ-05262 AMERICAN EXPRESS NATIONAL BANK VS. GABRIEL CORPUZ

AMERICAN EXPRESS NATIONAL BANK
GABRIEL CORPUZ

ERIC J. JUN
PRO SE

6. Defendant's Motion to Strike Proof of Service
7. Defendant's Motion to Quash Service of Summons and Complaint

TENTATIVE RULING:

Defendant Gabriel Corpuz has filed a Motion to Strike Proof of Service under Code of Civil Procedure ("CCP") Section 436. However, as Plaintiff's opposition notes, Section 436 only relates to motion under CCP Section 435 which by its plain language only applies to a type of "pleading" which is defined in the statute as a "demurrer, answer, complaint, or cross-complaint." CCP § 435(a)(2). Thus this attempt to strike a Proof of Service has no statutory basis, and it is summarily DENIED.

Defendant Gabriel Corpuz has also filed a Motion to Quash Service of Summons. After reviewing the entire motion, opposition, reply, and all related filings as reflected in the Court Registry which the Court takes Judicial Notice of (Evidence Code § 452(d)), this motion is likewise DENIED.

Defendant attempts to bring this motion to quash pursuant to Code of Civil Procedure ("CCP") Sections 418.10 and 410.50. However, Section 410.50 does not provide a basis for this motion, while Section 418.10 only allows a defendant to file a motion to quash service of summons on or before the last day of the time to plead and respond to such service of summons. CCP § 418.10(a)(1). This is not applicable, as Defendant's time to plead has already expired under the Proof of Service (POS) filed on November 5, 2025, and these motions were not filed under January 13, 2026. On this procedural basis, the motion is denied. Despite this, the Court still addresses the merits.

When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the facts establishing effective service. *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Evidence Code Section 647:

The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.

In this case, the POS filed on November 5, 2025 is by a registered process server, which creates a presumption of valid service. The POS establishes substitute service for Defendant, by serving a